



CHAPTER clii.

An Act to empower the corporation of Harrogate to A.D. 1904.
construct a temporary tramroad telephonic communication
and other works in connection with their waterworks and
for other purposes. [1st August 1904.]

WHEREAS the mayor aldermen and burgesses of the borough
of Harrogate (in this Act called "the Corporation") are
the owners of the Harrogate Waterworks and supply water under
statutory authority to the said borough and various adjacent
places :

And whereas under the provisions of the Harrogate Water
Act 1901 the Corporation were authorised to construct a reservoir
and other works in the parish of Healey-with-Sutton and Ilton-
cum-Pott (detached) in the North Riding of the county of York :

And whereas the Corporation are proceeding with the
construction of the said works but find that the progress of the
work is impeded by difficulty in transporting the materials for
the construction of the embankments of the reservoir and other
works and it would be a great saving of cost and time if the
Corporation were authorised to construct a temporary tramroad
from Masham Station to connect with the tramroad authorised
by the Harrogate Water Act 1901 :

And whereas it would be a great convenience and saving of
cost and expense to have telephonic communication between the
municipal offices of the Corporation at Harrogate and the water-
works authorised by the said Act and no such communication
now exists :

And whereas plans and sections showing the lines and levels
of the tramroad such plans showing the lands to be used for the
purposes of the tramroad and a plan of the telephonic works and

A.D. 1904. a book of reference to the said plans containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of those lands have been deposited with the clerks of the peace for the North and West Ridings of the county of York and are hereinafter referred to respectively as the deposited plans sections and book of reference :

And whereas an estimate has been prepared by the Corporation for the purchase of lands and the construction of the tramroad by this Act authorised and such estimate amounts to ten thousand five hundred and ninety-nine pounds but the moneys authorised to be raised under the Act of 1901 will be sufficient to cover the amount of such estimate :

And whereas the several works included in such estimate are permanent works within the meaning of the Public Health Act 1875 and it is expedient that the cost thereof should be spread over a term of years and that the Corporation should be entitled to apply any moneys borrowed by them under the Act of 1901 for the purpose of defraying such cost :

And whereas an absolute majority of the whole number of the Corporation at a meeting held on the twenty-ninth day of December one thousand nine hundred and three after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the Harrogate Advertiser a local newspaper circulating in the district such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the district fund and general district rate :

And whereas such resolution was published twice in the Harrogate Herald a newspaper circulating in the district and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the Corporation at a further special meeting held in pursuance of a similar notice on the twenty-eighth day of January one thousand nine hundred and four being not less than fourteen days after the deposit of the Bill for this Act in Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule to the Borough Funds Act 1903 have been observed :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :— A.D. 1904.

1. This Act may be cited for all purposes as the Harrogate Waterworks Tramroad Act 1904. Short title.

2. The following Acts and parts of Acts (that is to say) :— Incorporation of Acts.
The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845) ;

The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof ;

The Regulation of Railways Act 1868 Part II. and the provisions referred to under the general headings " Offences " and " Miscellaneous " of Part III. of the Tramways Act 1870 ;

so far as they are applicable to and not expressly varied by or inconsistent with the provisions of this Act are incorporated with and form part of this Act and shall apply to the works authorised by this Act Provided that the provisions of the Tramways Act 1870 shall not apply to any portion of the tramroad not laid in or across a public road.

3. In this Act the several words and expressions to which meanings are assigned by the Harrogate Water Act 1901 and Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction : Interpretation.

The expression " the Act of 1901 " means the Harrogate Water Act 1901 ;

The expression " the corporation of Leeds " means the lord mayor aldermen and citizens of the city of Leeds ;

The expression " mechanical power " includes steam electrical and every other motive power not being animal power ;

The expression " tramroad " means the tramroad authorised to be constructed under this Act.

4. Subject to the provisions of this Act the Corporation may make form lay down work use and maintain in the lines and Power to execute works.

A.D. 1904. — according to the levels and within the limits of deviation shown on the deposited plans and sections and in all respects in accordance with the deposited plans and sections with all proper rails plates wires posts poles insulators works and conveniences connected therewith the tramroad and other works following (that is to say) :—

Work No. 1 A tramroad (four miles and four furlongs in length) commencing in the parish of Burton-upon-Ure in the North Riding of the county of York at the terminus of the Masham branch of the North Eastern Railway at Masham Station and terminating in the parish of Healey-with-Sutton by a junction with the tramroad (Work No. 7) authorised by the Act of 1901 :

Work No. 2 A telephonic main commencing at the boundary of the township of Swinton with Warthermaske in the highway leading from Masham to Grewelthorpe at the junction of the boundaries of the North and West Ridings of the county of York and terminating by a junction with Work No. 2 authorised by the Act of 1901.

Power to
make subsi-
diary works.

5. The Corporation may from time to time upon any lands acquired or to be acquired by them construct and maintain all such embankments bridges roads ways workshops engineering and other machinery waterpower stations turbines electric telegraphic and telephonic works poles lines and apparatus rails plates sleepers tramways sidings stations depôts platforms ways approaches warehouses sheds buildings cranes lifts culverts sluices pipes sewers drains and other works and conveniences as may be necessary or convenient in connection with the tramroad and other works incidental thereto authorised by this Act or any of them but nothing in this section shall exonerate the Corporation from any action or indictment or other proceeding for nuisance in the event of any nuisance being caused by them.

For pro-
tection of
North East-
ern Railway
Company.

6. For the protection of the North Eastern Railway Company (hereinafter called "the North Eastern Company") the following provisions shall have effect (that is to say) :—

Notwithstanding anything in this Act contained or shown on the deposited plans and sections the Corporation shall not in constructing the tramroad referred to in this Act make any junction between such tramroad and the railway of the North Eastern Company without the consent in

writing of the North Eastern Company under the hand of their secretary nor without the like consent shall the Corporation purchase or take any land or property of the North Eastern Company. A.D. 1904.

7. For the protection of the county council of the North Riding of the county of York (in this section referred to as "the council") the following provisions shall unless otherwise agreed in writing between the council and the Corporation have effect (that is to say) :— For protection of North Riding County Council.

(1) If under the powers of this Act the Corporation shall raise the level of the county main road near Masham Station such raising of level shall be carried out to the satisfaction of the council and under the superintendence (at the expense of the Corporation) of some person to be appointed by the council :

(2) The material used in carrying out such raising of level shall be such as the council shall approve and the Corporation shall metal the surface with Whinstone macadam to a depth of not less than six inches :

(3) The provisions of section 58 of the Railways Clauses Consolidation Act 1845 shall in relation to all roads vested in the council or towards the maintenance repair and improvement of which the council are liable to contribute apply to the tramroad and to the Corporation in respect thereof as fully and effectually as though the said section were incorporated in this Act and the expressions "the railway" and "the company" in the said section shall be deemed to mean the tramroad and the Corporation respectively :

(4) It shall not be lawful for the Corporation to allow any train engine carriage or truck to stand across any such road as aforesaid :

(5) The Corporation shall not allow any engine or trucks using the tramroad to cross any county main road between the hours of one hour after sunset and one hour before sunrise except in cases of emergency arising through accident or sickness on their said works.

8. For the protection of the urban district council of the urban district of Masham (in this section referred to as "the council") the following provisions shall unless otherwise agreed For protection of Masham

A.D. 1904. in writing between the council and the Corporation have effect
Urban Dis- (that is to say) :—
trict Council.

- (1) The Corporation shall lay with such materials and in such manner as the council may reasonably require and shall at all times until the tramroad shall be removed maintain and repair to the satisfaction of the council so much of all roads within the jurisdiction and under the control or management of the council (in this section referred to as "district roads") upon or across which the tramroad is laid and as lies between the rails of the tramroad and as extends for a distance of eighteen inches beyond such rails on each side :
- (2) The Corporation shall not lay the tramroad upon or across any district road or execute any work affecting any such road otherwise than in accordance with plans and sections previously submitted to and approved by the council but such approval shall not be unreasonably withheld and all works constructed by the Corporation upon across or affecting district roads shall be executed under the supervision (at the expense of the Corporation) and to the satisfaction of the council :
- (3) All road material removed from the public highways during the construction of the tramroad and not required by the Corporation for the construction thereof shall be the property of the council and the Corporation shall within fourteen days after receiving notice from the surveyor to the council remove the same to such place not more than one mile distant from the tramroad as he may direct and if they fail so to do the council may remove the same at the expense of the Corporation :
- (4) All alterations to sewers drains manholes lampholes gulleys gas and water mains and services shall be executed by the council and the Corporation shall pay the reasonable cost of such alterations together with five per centum on the amount of such cost for superintendence :
- (5) In constructing maintaining and using the tramroad and working the traffic thereon the Corporation shall not

obstruct or unduly interfere with the passage of vehicles or persons along the roads crossed on the level by the tramroad : A.D. 1904.

- (6) The provisions of section 58 of the Railways Clauses Consolidation Act 1845 shall in relation to all district roads apply to the tramroad and to the Corporation in respect thereof as fully and effectually as though the said section were incorporated in this Act and the expressions "the railway" and "the company" in the said section shall be deemed to mean the tramroad and the Corporation respectively :
- (7) It shall not be lawful for the Corporation to allow any train engine carriage or truck to stand across any district road :
- (8) Notwithstanding anything contained in this Act the Corporation shall not place any electric line or wire underground in the district roads and shall not except for the purpose of erecting posts for carrying the electric lines or wires placed for affording the telephonic communication by this Act authorised open or break up the surface of any of the said roads :
- (9) All posts erected by the Corporation under the powers of this Act in the said roads shall be placed in such positions in the said roads as the council may direct and shall be stayed or otherwise supported in such manner as the council may reasonably require :
- (10) All electric lines or wires placed by the Corporation in the district roads shall be placed at such height above the ground as the council may prescribe :
- (11) If at any time the council shall be of opinion that any of the posts or wires erected or placed by the Corporation in any of the said roads are in such condition as to cause risk of injury or damage to persons or property the Corporation shall make all such renewals or alterations of or repairs to such posts or wires as the council may reasonably require :
- (12) If any question shall arise as to the reasonableness of any requirement of the council under this section such question shall be determined by an arbitrator to be agreed upon or failing agreement to be appointed on the application of either party by the Board of Trade.

A.D. 1904.

For protection of
Ripon Rural
District
Council.

9. For the protection of the rural district council of the rural district of Ripon in the West Riding of the county of York (in this section referred to as "the council") the following provisions shall unless otherwise agreed in writing between the council and the Corporation have effect (that is to say) :—

- (1) Notwithstanding anything contained in this Act the Corporation shall not place any electric line or wire underground in any public road within the district of the council and shall not except for the purpose of erecting posts for carrying the electric lines or wires placed for affording the telephonic communication by this Act authorised open or break up the surface of any street or road within the said district :
- (2) All posts erected by the Corporation under the powers of this Act in any public road within the said district shall be placed in such position in the road as the council may direct and shall be stayed or otherwise supported in such manner as the council may reasonably require :
- (3) All electric lines or wires placed by the Corporation in any public road within the said district shall be placed at such height above the ground as the council may reasonably prescribe :
- (4) If at any time the council shall be of opinion that any of the posts or wires erected or placed by the Corporation in any public road within the said district are in such a condition as to cause risk of injury or damage to persons or property the Corporation shall make all such renewals or alterations of or repairs to such posts or wires as the council may reasonably require :
- (5) If any question shall arise as to the reasonableness of any requirement of the council under this section such question shall be determined by an arbitrator to be agreed upon or failing agreement to be appointed on the application of either party by the Board of Trade.

As to cross-
ing roads on
level.

10. The Corporation may in the construction of the tramroad by this Act authorised carry the same with a single line only across and on the level of any public highway shown on

the deposited plans subject to the following provisions (that is to say) :— A.D. 1904.

- (a) Cattle guards or other suitable contrivances shall be constructed at each side of the road and so maintained as to prevent cattle or horses on the road from entering upon the tramroad :
- (b) At each of two points one three hundred yards along the tramroad in one direction from the level crossing and the other three hundred yards along the tramroad in the other direction from the level crossing there shall be erected and maintained a white post standing five feet above the ground and bearing upon it and so as to be plainly legible by the driver of an engine approaching the level crossing a statement indicating the near approach of the level crossing :
- (c) At each of two points one fifty yards or thereabouts along the road in one direction from the point of crossing and the other fifty yards or thereabouts along the road in the other direction from the point of crossing there shall be erected and maintained by the Corporation a notice board cautioning the public to beware of trains.

11. In the construction of the tramroad and works the Corporation may deviate to any extent not exceeding the limits of deviation shown on the deposited plans and they may also deviate vertically from the levels shown on the deposited sections to any extent not exceeding seven feet upwards and seven feet downwards. Power to deviate.

In the construction of the tramroad the Corporation shall at the request of the corporation of Leeds construct the same in such position as shall be agreed between the engineers of the two corporations or failing agreement shall be determined by Henry Slade Childe or failing him an engineer to be appointed by the President of the Institution of Civil Engineers.

12. The tramroad shall be constructed on a gauge of two feet or on such other gauge as the Board of Trade may approve Provided that in order to afford siding accommodation for the transhipment of goods materials and things of the Corporation and the Leeds Corporation the Corporation shall construct the tramroad for a distance of two hundred and fifty yards from Gauge and mode of formation of tramroad.

A.D. 1904. — its commencement as shown on the deposited plans on a gauge of four feet eight and a half inches.

Corporation
to provide
level cross-
ing gates.

13. The provisions of section 47 of the Railways Clauses Consolidation Act 1845 shall apply with respect to the county main road near Masham Station at the point at which the tramroad will cross the same and in construing the said section for the purposes of this Act the expression "the railway" shall mean the tramroad.

Motive
power on
tramroad.

14. The engines carriages cars or trucks to be used on the tramroad may be worked by animal or mechanical power or partly by one and partly by another of such powers Provided that in the event of the engines carriages cars or trucks on the tramroad being worked by electrical power the Corporation shall so construct their electric lines and other works of all descriptions and shall so maintain and work the tramroad as to prevent any interference with telegraphic communication by means of any telegraphic lines of the Postmaster-General or with telephonic communication by means of any apparatus of the National Telephone Company Limited.

Acquisition
of lands.

15. Subject to the provisions of this Act the Corporation may purchase and take by compulsion or agreement such of the lands houses and hereditaments shown on the deposited plans and described in the deposited book of reference as they may require for the purposes of this Act or any estate interest easements or rights in over or affecting the same and may vary or extinguish any rights or privileges affecting such lands houses or hereditaments.

Power to
acquire
easements.

16. The Corporation may in lieu of acquiring any lands for the purpose of the tramroad or other works incident thereto by this Act authorised acquire such temporary or permanent easements or rights in over or affecting such lands as they may require for the purpose of constructing maintaining using and managing the same and may give notice to treat in respect of such easements and rights and may in such notice describe the nature thereof and the several provisions of the Lands Clauses Acts inclusive of those with regard to arbitration and the summoning of a jury shall apply to such easements and rights as fully as if the same were lands within the meaning of those Acts Provided always that except as to land forming part of a road nothing herein contained shall authorise the Corporation to

acquire by compulsion any such easement in any case in which the owner in his particulars of claim shall require the Corporation to acquire the lands in respect of which they have given notice to treat for the acquisition of an easement only and every notice to treat shall be endorsed with notice of this proviso. A.D. 1904.

17. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Corporation any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively. Persons under disability may grant easements &c.

18. During the execution of the several works which the Corporation are by this Act authorised to make and maintain and subject to the provisions of this Act the Corporation may from time to time cross stop up alter or divert temporarily any of the roads ways footpaths bridges railways tramways aqueducts streams watercourses sewers drains culverts and pipes shown on the deposited plans and described in the deposited book of reference as intended to be crossed stopped up altered or diverted temporarily or on or in any of the lands acquired or to be acquired by the Corporation for the purposes of this Act. Power to stop up roads.

19.—(1) The tramroad where laid across any public road on the level shall be laid and maintained as a single line and in such manner that the uppermost surface of the rails shall be on a level with the surface thereof and no truck carriage or engine shall be allowed to stand on any part of any public road crossed on the level by the tramroad. Tramroad crossing public roads and private lands.

(2) The tramroad where laid on private lands shall be constructed as a surface line with as little detriment as possible to the lands through which it may pass consistent with the purpose for which the same is intended to be constructed and used.

(3) The Corporation shall not be under any obligation to fence the tramroad from any of the lands adjoining thereto or to erect or maintain gates at any place where the tramroad crosses any public or private road on the level (if other efficient means are provided to prevent cattle and sheep straying from the road) or to provide or maintain signals or signalling apparatus or

[Ch. clii.] *Harrogate Waterworks Tramroad Act, 1904.* [4 EDW. 7.]

A.D. 1904. — otherwise at any such place or to erect or maintain any bridge or other accommodation works at such place or to provide any system of drainage for any such lands.

User and discontinuance of tramroad.

20. The tramroad shall (save as in this Act expressly provided) be used exclusively for the purposes of and in connection with the reservoir and works authorised by the Act of 1901. Provided that within the period allowed for the construction of the reservoir authorised by the Act of 1901 the Corporation shall discontinue to use and shall abandon the tramroad and shall subject to the provisions of the Lands Clauses Acts sell and dispose of the lands belonging to the Corporation (not being part of any public road) forming the site thereof and shall take up remove sell and dispose of the rails ballasting sleepers and materials used in the construction thereof and restore the surface of the lands interfered with by or in consequence of the tramroad to the condition as nearly as may be in which the same were immediately before the tramroad was begun to be laid or constructed.

Assessing of compensation.

21. In assessing the compensation to be paid for any lands easements or rights taken compulsorily under this Act or the Acts incorporated therewith regard shall be had to the temporary character of the tramroad and works authorised by this Act and to the restoration of the lands to the owners and occupiers on the abandonment of the tramroad and works and the discontinuance of the user of such lands and the arbitrator shall if required by the Corporation award a sum to be paid to the owners and occupiers by way of rent during the occupation of the lands in lieu of any other compensation payable under the Lands Clauses Acts.

Agreements between Corporation and others.

22. The Corporation on the one hand and the North Eastern Railway Company or the corporation of Leeds or any company or person on the other hand may enter into and carry into effect agreements with reference to the construction working use running over maintenance and management jointly or otherwise of the tramroad and works and the supply and maintenance of engines stock and plant and otherwise in connection with the construction working use maintenance or management of the tramroad and works.

Running power facilities.

23. The Corporation shall afford to the corporation of Leeds facilities for running over and using the tramroad for the purposes of the works authorised by the Leeds Corporation Water Act

1901 and the corporation of Leeds shall exercise the same on such terms and conditions as to capital cost maintenance and user (but exclusive of any sums payable to the Honourable Samuel Cunliffe Lister by the Corporation under the agreement scheduled to this Act) as shall be agreed between the two corporations or failing agreement as shall be determined by an engineer to be appointed on the application of either corporation by the President of the Institution of Civil Engineers and in other respects the arbitration shall be in accordance with the provisions of the Arbitration Act 1889. A.D. 1904.

24.—(1) The Corporation shall construct and complete fit for traffic with forty-pound rails the tramroad by this Act authorised for the full length thereof as shown on the deposited plans within three months from the passing of this Act and shall subject to the provisions of this Act maintain and keep in good working order to the satisfaction of Henry Slade Childe or failing him an engineer to be appointed by the President of the Institution of Civil Engineers such tramroad for the full period allowed by the Leeds Corporation Water Act 1901 for the completion of their waterworks. As to construction and maintenance of tramroad.

(2) The Corporation shall in addition to the construction of the main line of tramroad hereinbefore provided for construct within the period aforesaid suitable passing-places not exceeding eight in number and shall at the expense of the corporation of Leeds afford such reasonable facilities (including the acquisition of land) as may be required to enable the corporation of Leeds to construct sidings and to provide such accommodation for the transhipment by the corporation of Leeds of goods materials and things and for their exclusive use the Corporation providing such siding accommodation as they may require for the transhipment of their goods materials and things and so that the siding accommodation of the two corporations shall be so arranged as not to involve the transhipment of goods materials and things upon the main line of tramroad. Provided that no part of any such passing-place or siding shall be constructed upon any part of any public road.

(3) In case the corporation of Leeds and the Corporation shall fail to agree in regard to the matters aforesaid the matter in dispute shall be determined by the said Henry Slade Childe or other engineer as aforesaid and in settling the matter the arbitrator shall take into consideration the reasonable requirements of the North Eastern Railway Company in regard to the working of the traffic and make provision accordingly.

A.D. 1904.

Purchase of
tramroad by
Leeds Cor-
poration.

25.—(1) Notwithstanding anything in this Act contained the Corporation shall in the event of the works authorised by the Act of 1901 being completed before the works authorised by the Leeds Corporation Water Act 1901 sell to the corporation of Leeds and the corporation of Leeds shall purchase the interest of the Corporation in the tramroad upon such terms and conditions as shall be agreed upon between the two corporations or as failing agreement shall be determined by arbitration such interest being calculated on the structural value of the undertaking after giving credit for the amount paid by the corporation of Leeds towards the capital cost of the tramroad. Upon payment of the purchase money so agreed or determined the tramroad and all works in connection therewith together with the rights powers and privileges of the Corporation in connection therewith shall be transferred to and vest in the corporation of Leeds.

(2) As from the date of such transfer the corporation of Leeds shall perform the obligations imposed upon the Corporation by the agreement scheduled to this Act and clause 8 of that agreement shall be read as if the Corporation were the corporation of Leeds and the period was the completion of the works authorised by the Leeds Corporation Water Act 1901.

Carriage of
persons and
goods over
tramroad.

26. The Corporation or the corporation of Leeds or any company or person duly authorised by or under agreement with the Corporation in that behalf may carry workmen servants and others upon the tramroad and works incidental thereto authorised to be constructed under this Act and may carry goods minerals stone and parcels over the same to or from the works authorised by the Act of 1901 or to or from the works of the corporation of Leeds authorised by the Leeds Corporation Water Act 1901 or in connection therewith or to or from any intermediate place between either of the said works and the commencement of the tramroad but there shall be no obligation upon them to do so.

Power to
take rates
on parcels.

27. The Corporation may demand and take rates and charges in respect of parcels carried over the tramroads and works of the Corporation or any part thereof not exceeding the following amounts (namely) :—

For any parcel not exceeding 14 lbs. in weight	-	2d.
For any parcel exceeding 14 lbs. but not exceeding 28 lbs.	-	3d.
For any parcel exceeding 28 lbs. but not exceeding 112 lbs.	-	4d.
For any parcel exceeding 112 lbs.	-	1s.

28. Rates or charges ordered to be paid or payable under and by virtue of this Act may be recovered under the provisions of the Summary Jurisdiction Acts. A.D. 1904.
Recovery of rates.

29. For the protection of the corporation of Leeds the following provision unless otherwise agreed shall have effect (that is to say):— For protection of corporation of Leeds.

Section 21 (Restriction on lands to be taken) of the Act of 1901 shall not apply to the works authorised by this Act Provided that the Corporation shall construct and maintain the tramroad and other works incidental thereto authorised by this Act in such a manner as not to interfere with or injure so much of the underground water main belonging to the corporation of Leeds as is laid under or adjoining the tramroad and in regard to any of the said mains which shall not have been constructed before the making of the tramroad the Corporation shall afford at the expense of the corporation of Leeds all such reasonable facilities as may be necessary or proper for constructing and maintaining the said mains under across or along the tramroad and the carrying and unloading of mains and pipes along the tramroad.

30. The agreement dated the fifth day of March one thousand nine hundred and four and made between the Corporation of the one part and the Honourable Samuel Cunliffe Lister of the other part as set forth in the Schedule to this Act is hereby confirmed and made binding upon the parties thereto. Confirming agreement with Hon. Samuel Cunliffe Lister.

31. Subject to the provisions of this Act the tramroad and other works authorised by this Act shall for all purposes be deemed to form part of the water undertaking of the Corporation authorised by the Act of 1901. Works to form part of water undertaking of Corporation.

32. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of two years from the passing of this Act and if the tramroad be not completed within a period of three years from such date the powers by this Act granted for executing the same shall cease except as to so much thereof as shall then be completed. Period for compulsory purchase and completion of works.

33. The Corporation may in the construction and laying of the telephonic main (Work No. 2) carry the same along or under and may break up the surface of and otherwise interfere with the Power to break up roads and lands for

A.D. 1904.
telephonic
lines.

following public or private roads highways lands and properties within the West Riding of the county of York (namely) The highway leading from Masham to Grewelthorpe and thence to Kirkby Malzeard and through that village to East View and thence along the highway called Ringbeck and Kirkbank Road past Bagwith House to Stock Wath at the junctions of the townships of Kirkby Malzeard and Grewelthorpe (detached) and thence across Stockbeck Moor to a point 800 yards or thereabouts measured in a northerly direction from the termination of Work No. 2 authorised by the Act of 1901.

Agreements
for construc-
tion and use
of telephone
main.

34. The Corporation on the one hand and the corporation of Leeds or any company or person on the other hand may enter into and carry into effect agreements with reference to the construction working use and maintenance of the telephonic main and works and telephones in connection therewith or in connection with any telephonic works constructed by the corporation of Leeds.

As to
placing of
electric lines
over or under
roads.

35.—(1) The provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets and with respect to injury to pipes and other works which are set forth in the appendix to the schedule to the Electric Lighting (Clauses) Act 1899 and the provisions of section 14 of the said schedule shall with the necessary modifications apply to the electric lines or wires and posts authorised by this Act and the said provisions of the Gasworks Clauses Act 1847 shall be construed as if the word “pipe” included electric lines or wires.

(2) All electric lines or wires and posts authorised by this Act to be placed along or across any road or highway shall unless required to be laid underground under the provisions of section 14 of the schedule to the Electric Lighting (Clauses) Act 1899 as applied by this Act be placed over the road or highway.

For pro-
tection of
Postmaster-
General.

36. Nothing in this Act shall authorise the Corporation to work or use any telegraphic or telephonic communications or electric lines or wires in contravention of the exclusive privilege conferred on the Postmaster-General by the Telegraph Act 1869 or in consideration of any money payment or any valuable consideration or for any purpose other than the purpose of their waterworks undertaking or to construct any such communications or electric lines or wires which shall interfere in any way with any telegraphic line in the possession or under the control of the Postmaster-General and the Corporation shall

within forty-eight hours of the service on them of a notice in writing by the Postmaster-General in that behalf remove or alter to the satisfaction of the Postmaster-General any such communications or electric lines or wires as aforesaid which in the opinion of the Postmaster-General interfere or will interfere with the efficient or convenient maintaining working or user of any telegraphic line which the Postmaster-General has constructed or desires to construct and in default of such removal or alteration as aforesaid the Postmaster-General may remove or alter any such communications or electric lines or wires as aforesaid at the expense of the Corporation.

A.D. 1904.

37. If the Corporation cannot place the electric lines wires or posts in or over any road or highway without cutting down any tree upon or overhanging the highway or lopping the branches thereof or if any tree or any branches thereof shall be in danger of falling on the electric lines or wires it shall be lawful for any two justices on the complaint of the Corporation to order such tree to be removed or otherwise dealt with and the justices in making such order may award compensation to be paid by the Corporation to the owner of the tree so ordered to be removed or otherwise dealt with as such justices shall think proper.

Provision for the removal of or lopping trees.

38. In the exercise of the powers in relation to the placing or laying down of electric lines posts or wires given them under this Act the Corporation shall cause as little detriment and inconvenience and do as little damage as may be and shall make full compensation to all bodies and persons interested for all damage sustained by them by reason or in consequence of the exercise of such powers and the amount and application of such compensation in case of difference shall be determined by arbitration.

Compensation for damage.

39. The Corporation shall apply all moneys received by them in respect of any sales exchanges or disposition of lands and premises by this Act authorised to be acquired or by way of fine or premium on any lease of any such lands in or towards paying off moneys borrowed and for the time being owing under this Act or if there shall be no moneys owing under this Act such proceeds shall be applied in or towards paying off any other moneys for the time being owing by the Corporation Provided that such proceeds when used to pay off the borrowed moneys shall not be applicable to the payment of instalments

Application of moneys from sale &c. of land.

A.D. 1904. — appropriations or annual repayments or to payments into the sinking fund except to such extent and upon such terms as may be approved by the Local Government Board.

Power to
apply
moneys bor-
rowed under
Act of 1901.

40. The Corporation may apply any moneys borrowed by them under the Act of 1901 for the purchase of lands and construction of waterworks mentioned in section 41 of that Act (the marginal note of which is "Power to Corporation to borrow") to the purchase of lands and easements and the construction of works under the powers of this Act as if the same had been the purchase of lands for and the construction of works authorised by that Act.

Application
of borrowing
provisions of
Act of 1901.

41. The provisions of the Act of 1901 relating to borrowed moneys shall apply to moneys borrowed under this Act for the payment of the taxed costs of this Act and the same shall be deemed to form part of and shall be paid in the same manner as the costs of the Act of 1901 except that the period within which any money borrowed for the payment of costs shall be repaid shall be five years from the passing of this Act.

Expenses of
executing
Act.

42. All expenses incurred by the Corporation in carrying into execution the provisions of this Act (except such as are to be paid out of borrowed money) shall be paid out of the revenue received by the Corporation for or in respect of or incidental to the supply of water by them and any deficiency in such revenue shall be met out of the district fund and general district rate.

Costs of Act.

43. All costs charges and expenses of and preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of moneys to be borrowed for the purpose under the provisions of this Act and the Act of 1901.

The SCHEDULE referred to in the foregoing Act.

A.D. 1904.

AGREEMENT made the fifth day of March one thousand nine hundred and four between the HONOURABLE SAMUEL CUNLIFFE LISTER of Swinton Masham in the North Riding of the county of York (herein referred to as "the owner" which term includes his heirs and successors in estate and assigns) of the one part and the MAYOR ALDERMEN AND BURGESSES OF THE BOROUGH OF HARROGATE (herein referred to as "the Corporation") of the other part.

WHEREAS the Corporation have introduced into Parliament a Bill (hereinafter referred to as "the Bill") intituled "A Bill to empower the corporation of Harrogate to construct a temporary tramroad telephonic communication and other works in connection with their waterworks and for other purposes":

And whereas the lord mayor aldermen and citizens of the city of Leeds (hereinafter referred to as "the Leeds Corporation") have introduced into Parliament a Bill (hereinafter referred to as "the Leeds Bill") intituled "A Bill for empowering the corporation of Leeds to construct certain temporary railways and works to facilitate the construction of their authorised waterworks in the valley of the Burn and to authorise the placing of electric lines in certain highways and for other purposes":

And whereas the owner is the tenant for life in possession of that portion of the Swinton Estate through which the tramroad and railways proposed to be constructed by the Bills of the Corporation and the Leeds Corporation respectively would pass if the same were constructed:

And whereas the owner has lodged petitions against the Bill and the Leeds Bill on merits praying to be heard by counsel:

And whereas the Corporation have entered into negotiations with the owner with a view to meeting the objections of the owner to the Bill which negotiations have resulted in the arrangement hereinafter set forth and the owner has agreed not to further oppose the progress of the Bill through Parliament subject to the terms and conditions hereinafter contained:

Now therefore it is hereby agreed and declared between the owner and the Corporation as follows (that is to say):—

1. The owner shall for the period named by the Harrogate Water Act 1901 for the construction of the reservoir thereby authorised grant to the Corporation an easement for the construction maintenance and user of a tramroad through the Swinton Estate of the owner from the River Ure on the eastern boundary of the said estate to the junction with the tramway (Work No. 7) authorised by the Harrogate Water Act 1901.

A.D. 1904.

2. The said tramroad hereby authorised to be constructed shall be a single line on a gauge of two feet with not more than eight sidings or passing-places exclusive of the staithe and loading ground hereinafter mentioned and shall be as nearly as possible in the line and direction shown on the deposited plans of the Corporation with such variations as the owner or his agent shall reasonably approve. Provided that the width of land appropriated shall not where the line is single exceed an average width of 15 feet and where there are sidings or passing-places an average width of 20 feet and the length of each siding or passing-place shall not exceed 50 yards.

3. The price to be paid by the Corporation to the owner for such easement shall be the sum of £4,885 (being calculated at the rate of 3s. 3d. per ton on the total quantity of materials estimated to be carried over the tramroad by the Corporation during the said period which estimate is for the purposes of this Agreement accepted by both parties as the basis of payment) to be paid before the Corporation shall enter on the land for the purpose of constructing the tramroad. Provided that if the Corporation shall elect to construct the tramroad from Swinney Beck Bridge instead of from the River Ure the price to be paid as aforesaid shall be reduced to the sum of £4,000.

4. If the Corporation shall construct the tramroad from Swinney Beck Bridge instead of from the River Ure the owner shall grant to them during the same period the user of the field No. 136 on the deposited plans for the purpose of being used as a staithe and loading ground the Corporation making the necessary arrangements with and compensating the tenants therefor.

5. Any lands of the owner required by the Corporation for the purposes of the easement intended to be hereby granted shall be taken by them subject to all existing tenancies and tenant right claims and every apportionment of rent shall be subject to the owner's consent and where the tramroad shall interfere with any existing watering-places for cattle or with any drainage the Corporation will make alternative provisions therefor to the reasonable satisfaction of the owner or his agent.

6. The Corporation shall properly drain the tramroad and shall maintain all ditches and construct and maintain all necessary drains and culverts under the tramroad so as to prevent the accumulation of water.

7. The Corporation shall give the owner or his agent all facilities for examining the railway company's accounts for carriage of materials so as to ascertain the weight carried over the tramroad.

8. The Corporation shall at their own expense at or before the expiration of the period named in clause 1 of this Agreement (and unless the owner shall exercise the option of purchase hereinafter contained) remove all and every the said tramroad and all other structures or structural works including all telephone and other wires connected therewith and shall replace the turf and leave the surface of the land on which the same shall have been laid or constructed in a like condition as near as possible as it is now and to the reasonable satisfaction of the owner or his agent and if the Corporation shall not remove such tramroad or such other works within the said period the same shall without making any payment to the Corporation become the

absolute property of the owner who may either retain or remove the same and if he removes the same the cost of such removal and of the restoration of the land shall be borne by the Corporation. Provided always that the owner shall have the option of giving notice to the Corporation at any time before the tramroad and works shall be removed of purchasing the same or any part thereof together with any fixed or loose plant on the works at a price which failing agreement shall be settled by arbitration as hereinafter provided.

9. The Corporation shall from time to time and at all times until the land affected thereby shall be restored and rendered again arable and fit for pasturing or agricultural purposes make compensation to the tenants or occupiers thereof for all injury or damage that shall be done to the surface of such lands or the fences herbage crops or other property thereon by reason of the laying down user and maintenance of the said tramroad and works or by reason of the exercise of any powers or privileges hereby given or authorised.

10. The Corporation shall prevent any of their workmen servants or agents from at any time trespassing on any of the lands or grounds of the owner or doing damage therein or disturbing any game thereon and particularly shall prevent any person or persons from using the line of tramroad as a footway or road.

11. Where the said tramroad shall cross a line of fence the Corporation shall so fence the same by cattle guards or other suitable contrivances so as to prevent stock depasturing on one field from straying to an adjoining or other field and shall make full satisfaction to the owner or the tenants or occupiers of the said land or other persons for any damage which may be sustained by them by reason of any horses cattle sheep or other animals straying trespassing or otherwise and shall indemnify the owner against all losses costs charges and expenses which he may incur or be put to by reason of anything arising out of or in any manner consequent upon these presents.

12. The Corporation shall at their own expense and at all times during the said period keep the tramroad and works hereby authorised to be laid down and constructed in good repair and shall make such diversions therein as may from time to time be reasonably required by the owner or his agent.

13. The owner reserves to himself the exclusive right (subject to the provisions of clause 14 hereof) to grant to the Leeds Corporation an easement to use the said tramroad on such terms and subject to such conditions as shall be agreed between the owner and the Leeds Corporation and without regard to the amount hereby agreed to be paid by the Corporation to the owner.

14. In the event of the easement being granted to the Leeds Corporation as provided by the last preceding clause the Corporation shall make arrangements with the Leeds Corporation for a contribution by them towards the capital cost maintenance and user of the said tramroad on such terms as may be agreed between them or as failing agreement shall be settled by arbitration as hereinafter provided but the Corporation shall not be entitled to require and shall not require any contribution from the amount which may hereafter be paid by the Leeds Corporation to the owner. Provided always that the Corporation shall and will at the request of the owner and with his consent give to the Leeds Corporation reasonable facilities for enabling them at their own expense to extend the said tramroad beyond Leighton Bridge in the

A.D. 1904. — lines and directions shown on the deposited plans of the Leeds Corporation or otherwise as may be agreed between the owner and the Leeds Corporation.

15. The exclusive right of sporting over any lands in respect of which the easement is hereby agreed to be granted with full rights of access and of passage along and across the same shall be reserved and belong to the owner and others whom he may authorise.

16. No barbed wire shall be used in the construction of fences or other works constructed by the Corporation under the powers of this Agreement.

17. No officer servant or agent of the Corporation shall at any time cross or come upon the estate of the owner without the written authority of the Corporation and such officer servant or agent shall at all times when upon such estate if required produce and show such authority to the owner his servants or agents.

18. All reasonable means for protecting game from damage or destruction shall be applied in the case of telegraph or telephone wires laid by the Corporation through the estate of the owner.

19. Any subsidiary works necessary to be constructed by the Corporation in connection with the said tramroad shall be subject to the reasonable approval of the owner or his engineer.

20. The powers proposed to be conferred by the section of the Bill whereof the marginal note is "Acquisition of lands" shall not apply to any lands of the owner.

21. The powers proposed to be conferred by the section of the Bill whereof the marginal note is "Agreements between Corporation and others" shall not so far as the section relates to the use and running over the tramroad be exercised by the Corporation on the estate of the owner without the consent of the owner.

22. The powers proposed to be conferred by the sections of the Bill whereof the marginal notes are "Carriage of persons and goods over tramroad" and "Power to take rates for parcels" shall not be exercised by the Corporation so as in any way to prejudice the rights and powers of the owner under this Agreement.

23. The Corporation shall have no power to take and use stone or other material obtained by them during the construction of the works authorised by the Harrogate Water Act 1901 for the purpose of the construction of the tramroad and works hereby authorised except upon terms of paying compensation therefor to the owner but this restriction shall not apply to stone excavated in the construction of the tramroad.

24. The powers proposed to be conferred by the section of the Bill whereof the marginal note is "Provision for the removal of or lopping trees" shall not be exercised without the consent of the owner and except in the case of absolute necessity no timber trees shall be interfered with and where such interference is necessary and any tree is removed or damaged the Corporation shall compensate the owner therefor.

25. The Corporation shall proceed with the petition which they have lodged against the Leeds Bill and shall and will by all means in their power oppose and endeavour to prevent the passing into law of the Leeds Bill and will co-operate with and render all assistance to the owner with that object.

26. The owner shall on the signing of this Agreement withdraw the petition which he has lodged against the Bill. A.D. 1904.

27. The provisions of this Agreement shall be in addition to and not in derogation from any other provisions of the Bill or any Act of Parliament to be incorporated therewith which may enure for the protection or benefit of the owner.

28. The Corporation shall pay the costs charges and expenses of the engineers or surveyors and solicitors respectively of the owner preparatory and incidental respectively to the negotiating the terms of this Agreement and the preparation and completion thereof and consequent thereon including the costs charges and expenses incurred and to be incurred in connection with the opposition of the owner to the Bill.

29. Any difference or dispute between the owner and the Corporation relating to any matter contained in this Agreement or arising under the Bill shall be determined by arbitration in manner provided by the Arbitration Act 1889.

30. This Agreement shall be set forth as a schedule to the Bill and provision shall be made in the Bill therefor and is conditional on the passing of the Bill into law and in case the Bill shall from any cause not pass into law this Agreement shall be void and of no effect or validity except that the costs charges and expenses provided to be paid by clause 28 hereof shall be paid by the Corporation in any event.

In witness whereof the owner hath hereunto set his hand and seal and the Corporation hath caused its common seal to be hereunto affixed the day and year first before written.

Signed sealed and delivered by the
said Samuel Cunliffe Lister in the
presence of

S. CUNLIFFE
LISTER.

L.S.

C. L. N. MAISTER
Swinton Masham
Land Agent.

The common seal of the mayor aldermen and
burgesses of the borough of Harrogate was
hereunto affixed in the presence of

HORACE MILLING Mayor.
J. TURNER TAYLOR Town Clerk.

L.S.

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